

HCS HB 2872 -- LITERACY OF ELEMENTARY SCHOOL STUDENTS

SPONSOR: Loy

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Elementary and Secondary Education by a vote of 20 to 0 with 2 members voting present. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 10 to 0 with 1 member voting present.

The following is a summary of the House Committee Substitute for HB 2872.

This bill creates, repeals, and modifies provisions relating to literacy of elementary school students.

EDUCATOR PREPARATION PROGRAMS (Sections 161.097)

The bill requires educator preparation programs to instruct teacher candidates on the selection and use of high-quality reading curricula and instructional materials that do not include the three-cueing system as a strategy for decoding, as defined in current law.

Beginning July 1, 2027, the Department of Elementary and Secondary Education (DESE) must annually review and publicly report on the compliance of educator preparation programs with literacy and reading instruction requirements of current law and those established in the bill. The review must evaluate whether instruction is grounded in the components of evidence-based reading instruction and whether prohibited practices, such as the three-cueing system, are excluded from coursework. Educator preparation programs not in compliance with these requirements will not be approved to certify new teachers.

STATE AID FOR READING INSTRUCTION (Section 161.241)

The bill provides that the current Evidence-Based Reading Instruction Program Fund may be used to fund reading tutoring programs inside regular school hours, rather than only outside regular school hours.

IDENTIFICATION OF READING DEFICIENCIES (Sections 167.268, 167.340, and 167.645)

The bill establishes the "Missouri Reading Screener" as a literacy-based reading assessment approved by DESE and adopted by

a school district or charter school to be administered to students at the end of kindergarten and in first grade through third grade. The screening must be administered three times per year in every school district and charter school in the State. The Screener will score each student and provide a numerical value relative to the student's grade level in one of the following categories: "at-risk", "approaching expectations", "meets expectations", and "exceeds expectations". Proficiency benchmarks associated with these categories will be determined by DESE.

Each school district and charter school must assess all students in first grade through third grade within the first 20 days of the school year and send the results home within the first 30 days. DESE will provide the Screener to school districts and charter schools at no cost. The Screener will also be used to comply with dyslexia screening requirements established in current law. Student results on the Screener must not be used to make decisions concerning the accreditation of a public school or school district.

A student who scores "approaching expectations" on the Screener will be identified as having a reading deficiency. A student who scores below "at risk" on the Screener will be identified as having a substantial reading deficiency.

Beginning with the 2027-28 school year, a school district or charter school must notify the parent of a student with a substantial reading deficiency and discuss whether the student should be retained in grade level based on relevant information.

Retention of a third-grade student with a substantial reading deficiency is mandatory unless the child qualifies for a good cause exemption or scores "approaching expectations" or higher on a retest opportunity through the Screener, as specified in the bill.

A good cause exemption can be granted to students who are disabled and have an individualized education plan (IEP), participate in the statewide summative English language arts assessment and who participate in certain plans outlined in the bill. A good cause exemption may also be granted to a student who identifies as an English language learner and has had less than two years of instruction in an English language, or a student who has already been retained at least once in kindergarten to third grade.

To request a good cause exemption, a student's teacher must submit documentation to the school principal recommending the student's promotion, including the type of exemption being requested and the child's existing reading improvement plan or IEP, as appropriate. The school principal must discuss the recommendation with the teacher and the parents or guardians of the student and determine whether the student qualifies for a good cause exemption. If the school principal determines that the student qualifies for the good cause exemption, the school principal will make the recommendation in writing to the superintendent, who will accept or reject the school principal's recommendation in writing.

The school district must assist schools with notifying parents of students who are retained of the reasons for the retention, along with a description of the proposed interventions and supports that will be provided to the child to remedy the identified area or areas of reading deficiency in the following school year.

In addition to current strategies provided to students identified as having a reading deficiency or substantial reading deficiency, the bill adds "read at home" plans outlined in a parental contract, including parent training workshops and guided home reading activities that are aligned to scientifically based reading research.

Intensive reading instruction provided to students exhibiting a reading deficiency or substantial reading deficiency cannot include the three-cueing system for decoding and schools must establish an intensive acceleration class for students retained in kindergarten through third grade. The acceleration class must include students who were previously retained with reduced teacher-student ratio and provide reading instruction for the majority of the day.

By October 1st annually, each school board must submit a written report to DESE that contains certain information regarding reading instruction, such as the board's policies regarding student retention and promotion, the number and percentage of students identified as having reading deficiencies or substantial reading deficiencies by grade level, the number and percentage of all students retained in kindergarten to third grade due to substantial reading deficiencies, and the total number and percentage of third-grade students who were promoted with good cause exemptions, as specified in the bill.

The bill requires public schools to publish the title and author of all reading curriculum materials by grade and reading level.

THREE-CUEING SYSTEM MODEL OF READING INSTRUCTION (Section 170.014)

Current law provides that instruction in word reading cannot rely primarily on the "three-cueing system". The bill changes the provision and instead provides that instruction in decoding will not primarily rely on strategies based on the three-cueing system in any form.

This bill is similar to SB 1442 (2026).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that the key to stronger academic achievement starts with a solid foundation of literacy. States like Mississippi showed tremendous results after implementation of a literacy program founded on the "science of reading". This bill will enhance the current efforts for Missouri toward achieving that end. The retention of students was necessary so that intensive reading interventions could be provided to those who needed it most. Having reform to the current model in place to ensure that evidence based instruction is being provided is also an essential aspect of the program. The funding for literacy must be included in the focus so that teachers can be trained and efforts to improve can be acknowledged.

Testifying in person for the bill were Representative Loy; Missouri Century Foundation; Aligned; Daniel Watson, Coalition With St. Louis Kids; Excellence In Education In Action; and Cory Koedel.

OPPONENTS: Those who oppose the bill say that, as filed, there are still concerns with the anticipated outcomes and what the best practices actually look like. Too often, the state tries to determine what a classroom teacher should be doing almost down to the minute. This is not an effective or efficient strategy. Having multiple screeners makes more sense and would be economical.

Testifying in person against the bill were Missouri State Teachers Association and Missouri National Education Association.

OTHERS: Others testifying on the bill say that in the past few years, teachers have had to learn to teach reading all over again using the new system. Also, in the past few years, four assessments or screeners were approved by the state board, and over 13,000 teachers have been trained in the science of reading.

Testifying in person on the bill were Missouri Council of School Administrators; and Heather Knight, Department of Elementary & Secondary Education.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.